

**DEPARTMENT SEVEN
JUDGE TIM P. KAM
707-207-7307
TENTATIVE RULINGS SCHEDULED FOR
TUESDAY, AUGUST 25, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

**CITIBANK, N.A. vs. PIERE P. JOUBERT
Case No. CL24-07258**

Motion to Enter Judgment Pursuant to the Stipulation

TENTATIVE RULING

Reflecting due process concerns, service of a motion affecting the rights of a defendant who has not appeared in an action typically is required to be made in the same manner as required for service of summons and complaint. See, e.g., applications for writs of attachment [C.C.P. §482.070(d)], and applications for writs of possession [C.C.P. §512.030(b)].

Defendant filed no responsive pleading in this action.

Plaintiff's motion is denied without prejudice. Should Plaintiff seek to refile their motion, Plaintiff is directed to effect service of the motion papers in the same manner as required for service of summons and complaint.

Plaintiff is also reminded that costs must be claimed post-judgment, per CRC 3.1700.

ANTHONY SMITH vs. HARSHAD B. WADHAR, MD
Case No. CU24-07285

Plaintiff's Motion to Compel Further Responses to Requests for Production, Set Three

TENTATIVE RULING

Plaintiff ANTHONY SMITH's motion to compel Defendant HARSHAD B. WADHAR, M.D.'s further responses to Plaintiff's requests for production, set three, is denied. Defendant served his responses to Plaintiff's requests for production by mail on August 20, 2025, giving Plaintiff fifty days to move to compel further responses. (Code Civ. Proc., §§ 1013, 2033.290, subd. (c).) This set Plaintiff's motion deadline at October 9, 2025. Plaintiff did not file his motion – even measured from the time that he submitted the motion to prison authorities per the “prison mailbox rule” – until October 21, 2025.

LLANA RAMOS vs. INFINITE COMPUTER SOLUTIONS, INC.
Case No. CU24-09034

Motion for Preliminary Approval of PAGA & Class Action Settlement

TENTATIVE RULING

The Parties are to appear.

The Parties should be prepared to discuss paragraph 8 of the settlement agreement, CLASS SIZE ESTIMATE.

RUBY ARIAS GARZA vs. ADOLFO M. SANDRIA; ET AL.
Case No. CU25-03026

Motion to Compel Plaintiff to Appear at Deposition

TENTATIVE RULING

The Parties are to appear. At the hearing, the Court's tentative ruling is as follows:

Defendant's unopposed motion to compel Plaintiff's deposition is granted. Plaintiff is ordered to attend her deposition on a date set by Defendant no later than fifteen days following the date of service of this order. The Court imposes sanctions upon Plaintiff in the amount of \$1,362.25 which are due and payable within thirty days after service of this order.

SHONNA-LEIGH RIVES vs. FPI MANAGEMENT INC. and BECKIE MANAOIS
Case No. CU25-07160

Defendants' Demurrer and Motion to Strike

TENTATIVE RULING

Defendants FPI MANAGEMENT INC. ("FPI") and BECKIE MANAOIS ("MANAOIS") demur to Plaintiff SHONNA-LEIGH RIVES's second amended complaint ("2AC") alleging causes of action for (1) retaliation, (2) breach of the covenant of quiet enjoyment, (3) violation of the Rosenthal Act, (4) unlawful business practices, (5) declaratory relief, and (6) injunctive relief. Defendants simultaneously move to strike the 2AC's prayers for punitive damages and attorneys' fees.

Summarized, the 2AC alleges that Plaintiff rents Apartment 107 at 528 Rocky Hill Road, where FPI and MANAOIS are property managers. On July 30, 2025 FPI served Plaintiff a notice of a rent increase to \$1,910 a month from \$1,746, to start September 2025. Plaintiff alleges that this rent increase is unlawful and has refused to pay the increased amount; however, Defendants refused to accept her tender of the previous rent amount every month and have referred the matter to debt collection services.

Legal Standard. "The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint is sufficient if it alleges ultimate rather than evidentiary facts, but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 551, fn. 5 [ultimate facts sufficient].) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Scope of Amendment. The court's order of February 17, 2026 granted Plaintiff leave to amend her then-extant but insufficient causes of action for breach of the implied warranty of habitability, constructive eviction, fraud, negligent hiring, supervision, and/or retention, and housing or disability discrimination, as well as her prayer for punitive damages. That Plaintiff elected not to do so is not a reason to sustain demurrer now. Plaintiff's 2AC also does not go beyond the bounds of the controversy previously alleged despite containing technically new causes of action. A party granted leave to amend a pleading may only add new causes of action if they are within the scope of the order granting leave to amend. (*Harris v. Wachovia Mortgage, FSB* (2010) 185 Cal.App.4th 1018, 1023.) However, a challenge to a pleading is evaluated by determining whether the facts stated support any cognizable cause of action; the titles under which the factual bases for relief are stated are not so important as the facts. (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38.) Plaintiff's

second through sixth causes of action have titles not seen in the previous version of her complaint. However, the factual basis was there previously where Plaintiff alleged that on July 30, 2025 Defendants served her an allegedly unlawful rent increase and thereafter she tendered the previous, proper amount of rent and was wrongly refused. (First Amended Complaint filed September 29, 2025 at 3:8-12, 23-25.)

Civil Code Section 1942.5 Retaliation. Civil Code section 1942.5 forbids a lessor from evicting a lessee, raising the lessee's rent, or decreasing services to the lessee in response to a complaint about tenantability of the premises. The 2AC contains no allegations that Plaintiff complained to FPI about the tenantability of the premises. It does not adequately plead Civil Code section 1942.5 retaliation.

Breach of the Covenant of Quiet Enjoyment. The elements of a claim for breach of the covenant of quiet enjoyment are (1) a lease agreement between the parties, (2) the absence of language contrary to the implied covenant that the tenant shall have quiet enjoyment and possession, (3) an act or omission by the landlord or anyone claiming under the landlord that substantially interferes with the tenant's right to use and enjoy the premises for the purposes contemplated, and (4) damages. (*Andrews v. Mobile Aire Estates* (2005) 125 Cal.App.4th 578, 588-591.) FPI and MANAOIS were the property owner's agents, not parties to the lease agreement with Plaintiff. (2AC at 2:7-18.) Further, the 2AC does not allege any facts showing interference with Plaintiff's quiet enjoyment of the premises. The 2AC does not sufficiently plead breach of the covenant of quiet enjoyment.

Fair Debt Collection Practices Act. Defendants are not "debt collectors." They are property managers. Their business is not debt collection. (Civ. Code, § 1788.2, subd. (c) [debt collector is person who collects debt in the ordinary course of business].) Notably, the 2AC states that Defendants referred Plaintiff's case out to actual debt collectors. (2AC at 5:17-18.) Further, Plaintiff states no intimidating or coercive conduct by Defendants in connection with collection of rent. Refusing what a party believes is incomplete payment, keeping a ledger, and referring a matter to debt collectors are not intimidating or coercive acts. That is all regular and expected activity in the context. Plaintiff does not state a cause of action for unfair debt collection practices.

Unlawful Business Practices. Business and Professions Code section 17200, the "unfair competition law," prohibits any activity that can be properly called a business practice and at the same time is forbidden by law. (*Kwikset Corp. v. Superior Court* (2011) 51 Cal.4th 310, 321.) The unfair competition law essentially borrows violations of other laws and makes them independently actionable when done pursuant to business activity; virtually any law can serve as the predicate for an unfair competition cause of action. (*Troyk v. Farmers Group, Inc.* (2009) 171 Cal.App.4th 1305, 1335.)

Plaintiff does not adequately state any other violation of law and so states nothing on which an unlawful business practices claim can stand.

Declaratory Relief. An action for declaratory relief requires an allegation showing that an actual or probable future controversy exists relating to the legal rights and duties of the parties and a request that those rights and duties be adjudged by the court. (*Sherwyn v. Department of Social Services* (1985) 173 Cal.App.3d 52, 58.) A court has discretion to refuse to hear a request for declaratory relief where a declaration or determination is not necessary or proper at the time and under the circumstances. (Code Civ. Proc., § 1061.) The purposes behind declaratory relief guide a court in determining its use of discretion to entertain a request: a declaratory judgment is to serve a practical end in quieting or stabilizing an uncertain or disputed jural relation or eliminate doubts that could otherwise develop into litigation. (*Meyer v. Sprint Spectrum L.P.* (2009) 45 Cal.4th 634, 647.) There is no basis for declaratory relief where only past wrongs are at issue. (*Osseous Technologies of America, Inc. v. DiscoveryOrtho Partners LLC* (2010) 191 Cal.App.4th 357, 366.)

Plaintiff alleges only a past controversy between her and Defendants. They already raised her rent and she has already refused to pay the increased amount. There is no prospective or future controversy for the court to head off through declaratory relief. It is not a properly stated cause of action in the current circumstances.

Injunctive Relief. Injunctive relief is a form of relief, not a cause of action. (*Allen v. City of Sacramento* (2015) 234 Cal.App.4th 41, 65.)

Motion to Strike. Code of Civil Procedure section 436, subdivision (a) permits a court to strike out any irrelevant, false, or improper matter inserted in any pleading, upon a motion or in its discretion. Irrelevant matters are those not essential to the statement of a claim or defense or not pertinent to or supported by an otherwise sufficient claim or defense and demands for relief not supported by the allegations. (Code Civ. Proc. § 431.10.) “The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice;” therefore, a motion to strike may not be based upon extrinsic evidence such as a declaration. (Code Civ. Proc. § 437, subd. (a).)

Civil Code section 3294, subdivision (a) provides that punitive damages are only available in actions not arising from breach of contract if is “proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice.” This means that a plaintiff’s pleading asking for punitive damages must plead facts to support a finding of oppression, fraud, or malice. (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166.) “Malice” means conduct intended to cause injury or despicable conduct carried on with a willful and conscious disregard of the rights or safety of others; “oppression” means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights; and “fraud” means intentional misrepresentation, deceit, or concealment of a material fact with intention to cause injury. (Civ. Code § 3294, subd. (c).) “Despicable” conduct refers to that which is “base, vile, or contemptible” and is something more than simple willful and conscious disregard for others. (*College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725.)

An employer shall only be liable for punitive damages based on its employee's acts where the employer had advance knowledge of the employee's unfitness and employed him with a conscious disregard for the rights and safety of others or authorized or ratified the employee's wrongful conduct. (Civ. Code § 3294, subd. (b).) A corporate employer can be held liable for punitive damages under those rules if the advance knowledge or authorization or ratification was on the part of an officer, director, or managing agent. (*Ibid.*) Ratification generally occurs where the employer demonstrates an intent to adopt or approve behavior. (*College Hospital, supra*, 8 Cal.4th at p. 726.) Ratification in the corporate context requires actual knowledge of the conduct and its outrageous nature. (*Ibid.*)

Plaintiff has not sufficiently stated any cause of action and so has not stated any basis for punitive damages. Plaintiff has also not stated any cause of action that could support recovery of attorneys' fees.

Leave to Amend. Leave to amend should be allowed when a defect is capable of cure. (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768.) The court finds that the identified defects with Plaintiff's causes of action for Civil Code section 1942.5 retaliation and unlawful business practices are capable of cure.

Conclusion. Defendants' demurrer is sustained with leave to amend with regard to Plaintiff's first and fourth causes of action.

Defendants' demurrer is sustained without leave to amend with regard to Plaintiff's second, third, fifth, and sixth causes of action.

Defendants' motion to strike is granted with leave to amend.

Plaintiff to file any amended pleading within thirty days of the date of this order.

SHONNA-LEIGH RIVES vs. FPI MANAGEMENT INC. and BECKIE MANAOIS
Case No. CU25-07160

Plaintiff's Motion for Preliminary Injunction

TENTATIVE RULING

Plaintiff SHONNA-LEIGH RIVES moves for a preliminary injunction against Defendants FPI MANAGEMENT INC. and BECKIE MANAOIS enjoining Defendants from initiating an unlawful detainer action against her.

Code of Civil Procedure section 527, subdivision (a) permits the issuance of a preliminary injunction at any time before judgment if a complaint or affidavits show that sufficient grounds exist. To obtain a preliminary injunction a plaintiff ordinarily must present

evidence of the irreparable injury or interim harm he will suffer if an injunction is not issued. (*Iloh v. Regents of University of California* (2023) 87 Cal.App.5th 513, 522.) The court evaluates the propriety of a preliminary injunction by weighing the likelihood that the moving party will ultimately prevail on the merits of their claim and the relative interim harm to the parties from the issuance or non-issuance of the injunction. (*Readylink Healthcare v. Cotton* (2005) 126 Cal.App.4th 1006, 1016.) A preliminary injunction is improper where harm may be fully compensated by damages. (*Tahoe Keys Property Owners' Assn. v. State Water Resources Control Board* (1994) 23 Cal.App.4th 1459, 1471.) An injunction is only appropriate when supported by evidence of a realistic prospect that the party enjoined intends to engage in the activity to be prohibited. (*Korean Philadelphia Presbyterian Church v. California Presbytery* (2000) 77 Cal.App.4th 1069, 1084.)

Plaintiff presents insufficient evidence of likely irreparable harm. Plaintiff speculates that Defendants may evict her due to the dispute between the parties over the correct amount of rent for her apartment. However, Plaintiff presents no evidence that eviction proceedings are likely. Further, Defendants are alleged to be the property managers of the complex where Plaintiff rents an apartment, not the owners. (Second Amended Complaint at 2:7-18.) They do not have the ability to initiate eviction proceedings against Plaintiff.

Further, Plaintiff does not demonstrate a probability of success on the merits of her complaint as the operative complaint is vulnerable to demurrer, as discussed in the court's separate analysis of Defendants' demurrer and motion to strike directed to the second amended complaint.

Plaintiff's motion for a preliminary injunction is denied.

Department 7 is inviting you to a scheduled ZoomGov meeting.
Join ZoomGov Meeting

<https://solano-courts-ca-gov.zoomgov.com/j/1611554664?pwd=T3U4QlBGWWNWaGlhXJTcGxIVHRXZz09>

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